Policy and Procedure

Policy #: Business Practices 10
Date Issued: September 2006
Effective Date: September 2006
Updated: October 2009

Subject: **Whistle-Blower Protection**

Application: Board of Trustees, Officers of the Corporations, all employees, including part-time and temporary employees, volunteers and vendors.

Purpose: The organization requires its trustees, officers and employees to observe high standards of business and personal ethics in the conduct of their duties and responsibilities. As employees and representatives of company, we must practice honesty and integrity in fulfilling our responsibilities and comply with all applicable laws and regulations.

Each member of the company community has the responsibility to report actions that violate laws, regulations, and/or Code of Conduct. In keeping with BPL's commitment to fostering a community of integrity and staff support has created a mechanism for staff members to report any concerns they may have relating to such violations.

The matters which should be reported under this policy include suspected fraud, theft, embezzlement, accounting or auditing irregularities, bribery, kickbacks, misuse of BPL's assets or suspected regulatory, compliance, or ethics-related issues, concerns or violations.

The organization has separate policies that specifically address issues of alleged employment discrimination or harassment at work. While the reporting mechanism set forth in this Whistle Blower policy may be used for any type of complaint, Theorganization encourages staff to rely on those policies wherever possible when reporting issues relating directly to their employment.

Statement of Policy: An employee who makes a report is protected from any harassment, victimization, and change in employment, up to and including dismissal that results from making the report. Managers must ensure that the procedures are available and known to all employees and that all employees have easy access to the mechanism for making reports.

Reporting: An employee who suspects wrongdoing by a colleague or colleagues should first reach out to their supervisor or a co-worker to address the matter directly. If the matter cannot be resolved at this level, the employee should contact BPL's Employee Relations Manager in the Human Resources Department. Trustees and Officers may report directly to the Chief Financial Officer or, where more appropriate, to the General Counsel.

If these avenues feel unsafe or are found to be ineffective, then any employee may make an anonymous and confidential complaint about an alleged violation by contacting BPL's reporting service. Contact may be made by phone, by placing a web-based report, or by mailing a written report. Details about contacting this service are available on posters and in literature that are widely disseminated for this purpose throughout the system.

Since this mechanism is critical to protecting the organization's reputation, assets, and community members, any knowingly false allegations will result in disciplinary actions.

Investigation: Preliminary Investigation

General Counsel, for the purposes of this policy and applicable procedures, will serve as the Reporting Officer. The Reporting Office will receive all complaints and conduct a preliminary investigation. If the Reporting Officer is the subject of the complaint, the report will be made to his or her manager.

During the preliminary investigation, the Reporting Officer will discuss the complaint with the manager responsible for the department named in the complaint, as well as with the department's Director and/or the appropriate Deputy Director. If the manager is the subject of the complaint, the Reporting Officer will work with the next higher level of management on the investigation.

If the preliminary investigation shows no justification for the complaint, the complaint will be closed and the complainant will be notified of this decision.

Further Investigation

If the preliminary investigation reveals wrongdoing, the Reporting Officer will pass on the complaint to the Chief Financial Officer, who will report to the Audit Committee of the Board of Trustees if the situation warrants. They, in turn, will decide how the investigation is to be carried out, in consultation with the Deputy Director with responsibility for the Department involved. The staff person making the complaint will receive general information on the progress of the investigation and its outcome unless doing so would jeopardize the investigation.

Reporting to the Board and Record-Keeping:

The Reporting Officer will present the results of all investigations and the settlement of all complaints to the Chair of the Audit Committee of the Board. A summary of reports will be presented on a quarterly basis to the Audit Committee of the Board and will not include the name of the staff member who made the complaint.

The Reporting Officer will keep records of all reports and information received in a confidential location. The Reporting Officer and the Chief Financial Officer must jointly approve any requests by staff to access these records.